

Opinion of the Court

In response to that decision, Congress passed the so-called Westfall Act, formally the Federal Employees Liability Reform and Tort Compensation Act of 1988, 28 U. S. C. § 2679. That Act makes the Federal Tort Claims Act (FTCA) “the exclusive remedy for most claims against Government employees arising out of their official conduct.” *Hui v. Castaneda*, 559 U. S. 799, 806 (2010).⁹ Thus, a person injured by a federal employee may seek recovery directly from the United States under the FTCA, but the FTCA bars “[a]ny claim arising in a foreign country.” § 2680(k).¹⁰ The upshot is that claims that would otherwise permit the recovery of damages are barred if the injury occurred abroad.

Yet another example is provided by the Torture Victim Protection Act of 1991, note following 28 U. S. C. § 1350, which created a cause of action that may be brought by an alien in a U. S. court under the Alien Tort Statute, § 1350. Under the Torture Victim Protection Act, a damages action may be brought by or on behalf of a victim of torture or an extrajudicial killing carried out by a person who acted under

⁹The Act also permits claims “brought for a violation of the Constitution.” 28 U. S. C. § 2679(b)(2)(A). By enacting this provision, Congress made clear that it was not attempting to abrogate *Bivens*, but the provision certainly does not suggest, as one of petitioners’ *amici* contends, that Congress “intended for a robust enforcement of *Bivens* remedies.” Brief for Institute for Justice as *Amicus Curiae* 21. Instead, the provision simply left *Bivens* where it found it. It is not a license to create a new *Bivens* remedy in a context we have never before addressed, see *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 68 (2001).

¹⁰Petitioners contend that Congress excluded claims arising abroad in order to avoid subjecting the United States to liability under foreign law, something that cannot occur under *Bivens*. Reply Brief 11. But neither the legislative history recounted in *Sosa v. Alvarez-Machain*, 542 U. S. 692, 707 (2004), nor anything else offered by petitioners shows that this was the only reason for this limitation. And the fact remains that the FTCA does not permit claims for torts committed abroad, a limitation that is consistent with Congress’s general practice of avoiding extraterritorial legislation. See, e. g., *Kiobel v. Royal Dutch Petroleum Co.*, 569 U. S. 108, 115–116 (2013).